

Iowa misdemeanor expungement: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-901C3-BOUNDARY

1. Review the packet before you use your one opportunity

This packet is for Alexandra Catherine Montgomery-Example, Johnson County, existing case EXAMPLE-901C3-BOUNDARY. It contains all three official Form 2 pages, including the service certification on page 3, and these instructions. Separate these instructions before filing.

No official returned DCI history report, proposed order, notarization, DCI request form or billing form is included. You must add your actual returned history report before filing. This draft is not a fully assembled filing and is not a grant of expungement. All personal facts, identifiers and case numbers here are synthetic examples. DO NOT FILE THESE EXAMPLES.

Section 901C.3 permits only one grant in a lifetime, with a limited same-transaction exception for multiple misdemeanors. Get legal advice before choosing among multiple convictions. This self-help build supports one case, not the legal determination that several cases arise from the same transaction.

2. Obtain the returned history report, not just a request form

Your reported history status is available; issue date 2026-08-08; age at intended filing 30 days; signed release reported completed. These answers are not proof of any report content or attachment.

Your reported dates are within 30 days of the intended filing date and you report signing the release. Personally verify the actual returned report and attach it. Item 9 remains blank because this generated PDF does not contain that report.

Form 2 requires an official DCI Iowa criminal history records check dated within the past 30 days of filing. Submit DCI-77 with your release-authorization signature and the required DCI-76 payment form for the chosen mail/fax procedure. DCI charges \$15 per last name. The request form, billing form and payment receipt are not the returned history report. Do not attach a blank request in its place.

DCI accepts the documented mail/fax/in-person procedures. Mail to DCI Support Operations Bureau, 215 East 7th Street, Des Moines, IA 50319; fax 515-725-6080; questions 515-725-6066. DCI reports mail/fax processing ordinarily takes 1-3 days after receipt, not a guaranteed delivery date. Use the current DCI instructions for payment, identification and all names. LegalEase does not request, inspect or authenticate your returned history.

Recheck the age against the actual filing date, not the build date. Day 30 is within the modeled limit; day 31 is not. A delayed filing can make a previously timely report stale. After you have physically/electronically attached the actual report to your filing and reviewed it, complete item 9 truthfully.

3. Confirm the exact conviction and the waiting period

Supplied conviction: Theft in the fifth degree, Iowa Code 714.2(5), entered 2017-09-06. Eight-year anniversary: 2025-09-06. Intended filing: 2026-09-07. The clock runs from conviction, not sentence completion or payment.

Item 6 is marked from supplied dates because the intended filing date is later than the eighth anniversary. Reconfirm those dates before signing.

This is the misdemeanor-conviction route, not dismissal/acquittal, deferred judgment, public intoxication, underage possession or felony-conviction relief. You must have no pending criminal charges anywhere, no prior 901C.3 grant, not more than one counted deferred-judgment proceeding, and all financial obligations in this case paid. Ask the clerk for the actual case balance. Separate civil room-and-board fees under section 356.7 are treated separately by Rule 2.83(3).

Review the full 2026 section 901C.3(2) list before personally checking item 4. It excludes sections 123.46, qualifying 123.47(3)/local offenses, 321.218, 321A.32, 321J.21, 321J.2, sex offenses defined in 692A.101, 707.5, 708.2(3), 708.2A, 708.7, 708.11, 708.12, 716.8(3)/(4), 721.2, 721.10, 723.1; chapters 717C, 719, 720, 724, 726, 728 and

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901A; specified comparable federal commercial-driver offenses and comparable offenses under prior law. The form also lists 235B.20; that source/statute discrepancy remains a legal-review hold for that category, not a reason to certify it eligible.

4. Finish the genuine choices and execution blanks

Item 3 is not selected because only one case and no related cases were supplied. Do not infer relatedness from similar case numbers. Multiple same-transaction cases require legal assistance and separate filing in every case. No related-case sheet is attached.

Personally review and complete item 4 (eligibility) and item 8 (deferred-judgment count). You reported 1 counted proceeding(s), but the form assertion remains your legal judgment. Charges deferred at the same time count as one. Do not check an unknown or untrue statement.

No extra alternate-names sheet is attached. Your one supplied alternate name is entered on page 1.

Check all prepared identity and contact entries against your actual information.

Choose signature election A for self-representation, enter the actual signing date and sign under penalty of perjury. The printed full name is not a signature. The attorney election and block B remain blank. Follow the court instructions for a permitted digitized signature or print and hand-sign; no notary or proposed order is supplied. Keep SSN, birth date, history and other personal data private and follow the court confidential-filing instructions.

5. File in the existing case and serve the county attorney

eFile selected: use the Iowa Judicial Branch eFile System in the existing Johnson County case. Upload the signed application with the real DCI report and any alternate-names sheet. Confirm acceptance and electronic service on the county attorney. An upload alone proves neither.

The paper certification remains blank. If electronic service does not reach the county attorney, resolve service with the clerk or legal assistance instead of falsely certifying delivery.

For paper service, enter the actual mailing/delivery date in the embedded certification only after service occurs. Follow clerk instructions for returning that certification. Keep the filed packet, filing acceptance and service proof. The county attorney may respond within 20 days after service unless otherwise ordered (Rule 2.83). A hearing may be set; silence is not an order.

6. Costs, outcome and when self-help stops

University of Iowa Student Legal Services reports no filing fee for an expungement request. Verify any case-specific charge with the clerk. No application-fee election or invented fee-waiver form is included. DCI record fees, copies and postage are separate from both filing and original case debt.

Seek legal help for contested eligibility, opposition, immigration consequences, multiple convictions/related cases, uncertain prior relief or deferred judgments, pending charges, disputed debt, prior-law/federal comparability, or the retained 235B.20 discrepancy. Do not miss court dates or deadlines while seeking help.

If granted, the court record becomes confidential under section 22.7 and may be made available by court order. Section 901C.3(5) separately requires the court to order removal of that conviction history from DPS files and prohibit further dissemination. That is not destruction of every record or a guarantee that every private background report updates. Keep the actual order and check court/DPS implementation.

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Sources and official assistance

Iowa Code 901C.3 (2026); Rule 2.86 Form 2 (August 2024); Iowa Rules 2.80, 2.81 and 2.83. Use the official sources and your actual court notices. This packet is not legal advice or a court eligibility decision.

<https://www.legis.iowa.gov/docs/code/2026/901C.3.pdf>

<https://www.iowacourts.gov/collections/867/files/1965/embedDocument/>

<https://dps.iowa.gov/divisions-iowa-department-public-safety/iowa-division-criminal-investigation/criminal-history-record-check-information>

<https://www.iowacourts.gov/efile>

<https://studentlegal.uiowa.edu/know-the-law/criminal-law/expungement>